

The Tamil Nadu State Agricultural Council Act, 2009

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State of Tamilnadu- Act

The Tamil Nadu State Agricultural Council Act, 2009

TAMILNADU

India

The Tamil Nadu State Agricultural Council Act, 2009

Act 19 of 2009

Published on 28 September 2011

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The Tamil Nadu State Agricultural Council Act, 2009

Act

No. 19 of 2009

Statement of Objects and Reasons. - At present there is no law to provide for the regulation of agricultural practice in the State of Tamil Nadu. It has, therefore, been considered necessary to regulate the agricultural practice and for the registration of agricultural practitioners in the State and to establish a Council called the Tamil Nadu Stab Agricultural Council. The Government have decided to undertake a legislation for the purpose. The Bill seeks to give effect to the above decision.

Received the Assent of the Governor of Tamil Nadu on August 5, 2009 - Published in Tamil Nadu Government Gazette, Extraordinary, Part IV, Section 2, Iss. No.207, pages 74-85, dated August 7, 2009.

This Act has been repealed by the Act No. 31 of 2011, dated 28.9.2011, published in T.N. Government Gazette dated

30.9.2011. Reproduced here for pending reference.

Preamble

An Act to regulate Agricultural Practice and to provide for the establishment of Agricultural Council and the maintenance of register of persons having qualification in agriculture or horticulture and for matters connected therewith.

Whereas it is expedient to make provisions for the regulation of agricultural practice and to provide, for that purpose, to establish Agricultural Council and the maintenance of register of persons having qualification in agriculture or horticulture for the State of Tamil Nadu and for matters connected therewith or ancillary thereto;

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Sixtieth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the [Tamil Nadu State Agricultural Council Act, 2009.]

[This Act has been repealed by the Act No. 31 of 2011, dated 28.9.2011, published in T.N. Government Gazette dated 30.9.2011. Reproduced here for pending reference.]

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It shall come into force on such date as the Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

"agricultural institution" means any university or other institution which grants degree in agriculture or horticulture;

(2)

"agricultural practitioner" means persons having agricultural qualification and carrying out agricultural project;

(3)

"agricultural project" means specific programme of work pertaining to agriculture or horticulture with well-defined objectives and programme of action with time-frame along with financial implication;

(4)

"agricultural qualification" means any of the qualifications specified in the Schedule which is granted by the institutions specified therein and the qualifications declared by the Government under Sections 15 and 16;

(5)

"committee" means the executive committee or other committees constituted by the Council under Section 12;

(6)

"Council" means the Tamil Nadu State Agricultural Council established under Section 3 of the Act;

(7)

"Government" means the State Government;

(8)

"member" means the member of the Council;

(9)

"register" means the Tamil Nadu State Agricultural Practitioners Register maintained under Section 21;

(10)

"regulation" means a regulation made under Section 43 of this Act;

(11)

"Schedule" means Schedule appended to this Act;

(12)

"Secretary" means a person appointed by the Council under Section 11.

3.

Establishment and Composition of the Council.

(1)

The Government may, by notification, establish a Council to be called the Tamil Nadu State Agricultural Council.

(2)

The Council shall be a body corporate by the name aforesaid, having perpetual succession and a common seal, with power to acquire, hold and dispose of property, both movable and immovable, and to contract and shall by the said name, sue or be sued.

(3)

The Council shall consist of the following Members, namely:-

(a)

twenty members to be elected, from among themselves, by the persons whose name has been entered in the register;

(b)

"five senior faculty members one each representing the faculty of Agriculture, Horticulture, Forestry, Agricultural Engineering and Home Science to be nominated by the Tamil Nadu Agricultural University" established under the Tamil Nadu Agricultural University Act, 1971 (Tamil Nadu Act 7 of 1971);

(c)

two members of Agriculture Department of the Government having qualification in agriculture, to be nominated by the Government;

(d)

one member of Horticulture Department of the Government having qualification in horticulture, to be nominated by the Government;

(e)

one member of Agricultural Engineering Department of the Government having qualification in Agricultural Engineering to be nominated by the Government;

(f)

one leading Agricultural entrepreneur preferably with agricultural qualification to be nominated by the Government.

(4)

The President and the Vice-President of the Council shall be elected by the members of the Council from among themselves.

(5)

The names of persons nominated or elected as members of the Council including the President and the Vice-President shall be notified by the Government in the Tamil Nadu Government Gazette.

(6)

A person shall not be qualified for nomination or election to the Council unless he has registered himself in the register.

4.

Mode of election.

(1)

An election, under Clause (a) of sub-section (3) of Section 3 shall be conducted by the Government in accordance with such Rules as may be prescribed and any Rules so made may provide that pending the preparation of register in accordance with the provisions of this Act, the members referred to in Clause (a) of sub-section (3) of Section 3 may be nominated by the Government.

(2)

Where any dispute arises regarding any election to the Council, it shall be referred to the Government for its decision which shall be final.

5.

Term of Office of President, Vice-President and members.

(1)

The President or Vice-President shall hold office for a term not exceeding four years and not extending beyond the expiry of his term as a member.

(2)

Subject to the provisions of sub-section (1), a member shall hold office for a term of four years from the date of his election or nomination to the Council:

Provided that such a member shall, notwithstanding the expiry of the said period of four years continue to hold office

until his successor is elected or nominated.

(3)

Member of the Council shall be eligible for re-nomination or reelection.

(4)

Where the term of four years in respect of any member of the Council is about to expire, a successor may be nominated or elected at any time within one month before the said term expires, but he shall not assume office until the said term has expired.

6.

Cessation of membership.

(1)

An elected or nominated member shall be deemed to have vacated his office:-

(a)

if he is absent without excuse, sufficient in the opinion of the Council, from three consecutive meetings of the Council;

(b)

in the case of the member elected or nominated, if he ceases to be a person enrolled in the register;

(c)

if he has been convicted of an offence involving moral turpitude and punishable with imprisonment;

(d)

if he is an undischarged insolvent;

(e)

if he is of unsound mind and stands so declared by competent Court.

(2)

On the occurrence of a vacancy referred to in sub-section (1), the Secretary shall forthwith report the fact of such vacancy to the Government and thereafter the Government may subject to the Proviso to Section 7, take necessary steps to fill such vacancy.

7.

Casual vacancy.

- A casual vacancy in the Council shall be filled by nomination or election, as the case may be, and the person nominated or elected to fill the vacancy shall hold office only for the remainder of the term for which the member whose place he takes, was nominated or elected:

Provided that no such casual vacancy occurring within six months on the date of expiry of the term of office of a nominated or an elected member need be filled under this Section.

8.

Resignation.

(1)

The President or Vice-President of the Council may at any time resign his office by notice in writing, addressed to the Council and delivered to the Secretary and the resignation shall take effect from the date on which it is accepted by the Council or on the expiry of ninety days from the date of receipt of the resignation by the Secretary whichever is earlier.

(2)

A member may at any time resign his office by notice in writing addressed to the President and every such resignation shall take effect from the date on which it is accepted by the President or on the expiry of ninety days from the date of receipt of the resignation by the President, whichever is earlier.

9.

Meetings.

(1)

The Council shall meet every quarter in a year at such time and place as may be appointed by the Council.

(2)

The quorum necessary for the transaction of business at a meeting of the Council shall be nine.

(3)

The President when present shall preside at the meeting of the Council, and in his absence, the Vice-President, and in the absence of both, any other member elected by the members present from amongst themselves shall preside at such

meeting.

(4)

Save as otherwise provided in this Act, all questions which come up before any meeting of the Council shall be decided by a majority of the members present and voting.

(5)

In the case of an equality of votes, the President of the Council or the member who presides the meeting shall have a casting vote.

(6)

Subject to the provisions of sub-sections (1) to (5), the Council shall observe such Rules of procedure in regard to transaction of business at its meetings as may be provided in the regulation.

10.

Vacancies in the Council not to invalidate acts, etc.

- No Act or proceeding of the Council shall be invalid by reason of the existence of a vacancy in the Council or on account of any defect or irregularity in its constitution.

11.

Appointment of Secretary and other officers and employees.

(1)

The Council may with the previous sanction of the Government appoint a person with agricultural qualification as Secretary of the Council, who shall also act as Treasurer unless the Council appoints any other person as Treasurer. The Council may also appoint such other officers and employees as it may deem necessary to carry out the purposes of this Act.

(2)

The terms and conditions of service of the Secretary, other officers and employees appointed by the Council shall be such as may be provided in the regulation.

(3)

The Secretary, Officers and other employees of the Council shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code (Central Act XLV of 1860).

(4)

All orders and decisions and other instruments of the Council shall be authenticated by the signature of the Secretary or any other officer of the Council duly authorised by it in this behalf.

12.

Executive Committee and other committees.

(1)

The Council shall constitute from among its members an executive committee and may constitute such other committees for such general or specific purposes as the Council considers necessary and may co-opt any person or persons specifically qualified to advise on any matter to any committee other than executive committee. The composition and function of executive committee shall be such as may be provided in the regulation.

(2)

A committee constituted under this Section shall meet at such time and at such place and shall observe such Rules of procedure in regard to the transaction of business at its meetings as may be provided in the regulation.

13.

Fees and allowances.

- The President, Vice-President and other members of the Council and also the members of the committees shall be paid such fees and allowances for attending the meetings of the Council or as the case may be, the committees, as may be provided in the regulation.

14.

Recognition of agricultural qualifications.

(1)

The agricultural qualifications granted by the agricultural institutions in the State of Tamil Nadu which are included in the Schedule shall be recognized agricultural qualifications for the purposes of this Act.

(2)

Any agricultural institution in the State of Tamil Nadu which grants an agricultural qualification not included in the Schedule may apply to the Government to have such qualification recognized and the Government, after consulting the Council, may by notification, amend the Schedule, so as to include such institution and such qualification therein when granted after a specified date.

15.

Recognition of agricultural qualifications when there is scheme of reciprocity.

(1)

The agricultural qualifications granted by agricultural institutions outside the State of Tamil Nadu or outside India with which there is a scheme of reciprocity shall be recognized qualifications for the purposes of this Act.

(2)

The Council may enter into negotiations with the authority in any State outside the State of Tamil Nadu or in any Country outside India which by the law of such State Or Country is entrusted with the maintenance of a register similar to the register referred to in Section 21 and for the setting up of a scheme of reciprocity for the recognition of agricultural qualifications, and in pursuance of any such negotiation and on the recommendation of the Council the Government may, by notification, declare that it shall be recognized only when granted after a specified date.

(3)

Where the Council has refused to recommend any agricultural qualification which has been proposed for recognition by any authority referred to in sub-section (2) and such authority applies to the Government, the Government after considering such application and after obtaining from the Council a report, if any, as to the reasons for any such refusal may, by notification, declare that it shall be recognized only when granted after a specified date.

16.

Recognition of agricultural qualifications when there is no scheme of reciprocity.

(1)

The Government after consultation with the Council may, by notification, direct that the agricultural qualifications granted by agricultural institution in any State outside the State of Tamil Nadu or in any Country outside India in respect of which a scheme of reciprocity for the recognition of agricultural qualifications is not in force, shall be recognized agricultural qualifications for the purposes specified in sub-section (2) and shall be so only when granted after a specified date or before a specified date.

(2)

The agricultural practice by persons possessing such qualifications,-

(a)

shall be permitted only if such persons are enrolled as agricultural practitioner in accordance with the law regulating the-registration of such persons for the time being in force in that State or Country;

(b)

shall be limited to the institutions to which they are attached for the time being for the purpose of teaching and research work; and

(c)

shall be limited to the period specified in this behalf by the Government by general or special order.

17.

Power to require information as to courses of study and examinations.

- Every agricultural institution which grants a recognized agricultural qualification shall furnish such information as the Council may from time to time require as to the courses of study and examinations to be undergone in order to obtain such qualification, as to the age of which such courses of study and examinations are required to be undergone and such qualification is conferred and generally as to the requisites for obtaining such qualification.

18.

Inspection of agricultural institutions and examinations.

(1)

The Council may, subject to regulations, if any, made by it, authorise such number of members as it may deem requisite to inspect any agricultural institution where agricultural education is given or to attend any examination held by any agricultural institution for the purpose of recommending to the Government for recognition of agricultural qualification granted by such agricultural institution.

(2)

The members so authorized shall not interfere with the conduct of any training or examination, but shall report to the Council on the adequacy of the standards of agricultural education including staff, equipment, accommodation, training and other facilities provided in the regulation for giving agricultural education or on the sufficiency of every examination which they attend.

(3)

The Council shall forward a copy of any such report to the agricultural institution concerned and shall also forward a copy with remarks, if any, of the said institution thereon, to the Government.

19.

Withdrawal of recognition.

(1)

When upon report by the members so authorised, it appears to the Council-

(a)

that the courses of study and examinations to be undergone or the proficiency required from candidates at any examination held by any agricultural institution in order to obtain the agricultural qualification are not in conformity with the regulation made under this Act or fall short of the standards required thereby, or

(b)

that the staff, equipment, accommodation, training and other facilities for instruction and training provided in such agricultural institution do not conform to the standards as may be provided in the regulation the Council shall send a statement to that effect to the Government.

(2)

After considering such a statement, the Government shall forward it along with such remarks as it may choose to make to the agricultural institution, with an intimation of the period within which that institution may submit its explanation to the Government.

(3)

The Government, on receipt of the explanation and after making such inquiry, if any, as it deems fit, may, by notification, direct that an entry shall be made in the Schedule against the said agricultural qualification granted by such agricultural institution declaring that it shall be recognized agricultural qualification only when granted before a specified date or after a specified date:

Provided that before issuing such notification, the Government may consult the Indian Council of Agricultural Research.

20.

Minimum standards of agricultural education.

(1)

The Council may by regulation specify the minimum standards at education required for granting agricultural qualifications by the agricultural institutions.

(2)

A committee, if any, constituted under Section 12 for this purpose shall, from time to time, report to the Council on the efficacy of the regulation and may recommend to the Council such amendments thereof as it may think fit.

21.

Tamil Nadu State Agricultural Practitioners Register.

(1)

The Council shall cause to be maintained in the prescribed manner a register to be known as the "Tamil Nadu State Agricultural Practitioners Register" which shall contain the names of all persons who possess the agricultural qualification and who are for any time being registered his name in the said register.

(2)

It shall be the duty of the Secretary of the Council,-

(a)

to keep the register in accordance with the provisions of this Act;

(b)

to keep any orders made by the Council;

(c)

to revise the register from time to time; and

(d)

to publish the register in the Tamil Nadu Government Gazette in such manner as may be provided in the regulation.

(3)

Such register shall be deemed to be a public document with in the meaning of the Indian Evidence Act, 1872 (Central Act 1 of 1872), and may be proved by a copy published in the Tamil Nadu Government Gazette.

22.

Preparation of the first register.

(1)

For the purposes of preparing the first Tamil Nadu State Agricultural Practitioners Register, the Government shall, by notification, constitute a Registration Tribunal consisting of three persons holding agricultural qualifications and also appoint a Registrar holding agricultural qualifications who shall act as Secretary of the Tribunal.

(2)

The Government may also, by notification, appoint a date on or before which application for registration, shall be made in such form and in such manner as may be prescribed, to the Registration Tribunal. The application for registration shall be accompanied by such fee not exceeding one thousand rupees, is may be prescribed.

(3)

The Registration Tribunal shall examine every application received on or before the appointed date, and if it is satisfied that the applicant is qualified for registration, shall direct the entry of the name of the applicant in the register.

(4)

The register so prepared shall thereafter be published in such manner as may be prescribed. Any person aggrieved by any entry in the register as so published may, within sixty days; from the date of such publication, appeal to an authority appointed by the Government in this behalf by notification.

(5)

The Registrar shall amend the register in accordance with the ; decision of the authority appointed under sub-section (4) and shall thereupon issue to every person whose name is entered in the register, a certificate of registration in such form as may be prescribed.

(6)

Upon the establishment of the Council, the register shall be given into its custody and all the application fees collected for registration in the first register shall be paid to the credit of the Council.

23.

Registration in the register and issue of Certificate.

(1)

After the establishment of the Council, the Secretary of the Council may, on an Application made in such form and in such manner, as may be prescribed, by any such person, if satisfied that the person concerned possesses agricultural qualification, enter his name in the register.

(2)

Any person whose name has been entered in the register shall on an Application made in this behalf in such form and in such manner and on payment of such fee not exceeding one thousand rupees as may be prescribed be entitled to a certificate of registration and the Council shall grant to the applicant a certificate of registration in such form as may be prescribed:

Provided that on the removal of his name from the register, such certificate shall cease to be valid.

(3)

Any person who acquired agricultural qualification from outside the State of Tamil Nadu and migrated into the State of Tamil Nadu shall also register with the Council within a period of ninety days of his entry in the State of Tamil Nadu.

(4)

Where it is shown to the satisfaction of the Secretary that a Certificate of registration has been lost or destroyed, the Secretary may, on payment of such fee not exceeding one thousand rupees as may be prescribed issue a duplicate Certificate in such form as may be prescribed.

24.

Registration of additional qualification.

- If any person whose name is entered in the register obtains any post-graduate degree or diploma in addition to his agricultural qualification, he shall, on an Application made in this behalf in such form and in such manner and on payment of such fee, not exceeding one thousand rupees as may be provided in the regulation, be entitled to have an entry stating such degree or diploma made against his name in the register in addition to any entry previously made.

25.

Renewal of registration.

(1)

For the retention of a name in the register, there shall be paid in every ten years to the Council, such renewal fee not exceeding one thousand rupees as may be provided in the regulation and such renewal fee shall be due to be paid before the first day of April of the year to which it relates.

(2)

Where a renewal fee is not paid within the said date, the Secretary shall remove the name of the defaulter from the register after giving a notice in such manner as may be provided in the regulation:

Provided that a name so removed may be restored to the register on payment of such fee in such manner as may be provided in the regulation.

(3)

On payment of the renewal fee, the Secretary shall issue a Certificate of renewal and such certificate shall be proof of renewal of registration.

26.

Removal from the register.

(1)

Subject to the provisions of this Section, the Council may order that the name of any person shall be removed from the register where it is satisfied after giving him reasonable opportunity of being heard and after such further inquiry, if any, as it may think fit, -

(a)

that his name has been entered in the register by error on account of mis-representation or suppression of a material fact, or

(b)

that he has been convicted of an offence involving moral turpitude and punishable with imprisonment or has been guilty of any infamous conduct and etiquette or the code of ethics which in the opinion of the Council renders him unfit to be kept in the said register.

(2)

An order under sub-section (1) may direct that any person whose name is ordered to be removed from the register shall be ineligible for registration under this Act, either permanently or for such period as may be specified in that order.

(3)

An order under sub-section (1) shall not take effect until the expiry of three months from the date thereof or until an appeal, if any, on such order is finally disposed of, whichever date is later.

(4)

A person aggrieved by an order under sub-section (1) may, within sixty days from the communication to him of such order, appeal to the Government and the decision of the Government shall be final.

(5)

A person whose name has been removed by an order under subsection (1) which has become final shall within such period as may be provided in the regulation surrender his certificate of registration and certificate of renewal, if any, to the Secretary and the name so removed shall be published in the Tamil Nadu Government Gazette.

27.

Person enrolled on the register to inform change of place of residence or practice.

- Every person whose name is entered in the register shall inform any transfer of the place of his residence or practice to the Council within ninety days of such transfer, failing which his right to participate in the election of members of the Council shall be liable to be forfeited by order of the Council, either permanently or for such period as may be specified therein.

28.

Privileges of person whose name is entered in the register.

- Subject to the conditions and restrictions laid down in this Act, every person whose name is borne on the register shall be entitled according to his qualifications to practice as an agricultural practitioner and to recover in due course of law in respect of such practice, any expenses, charges and fees to which he may be entitled.

29.

Right of person whose name is entered in the register.

- No person other than a person whose name is borne on the register shall practice as Agricultural consultant within the State of Tamil Nadu or render Agricultural services.

Explanation. - "Agricultural service" means-

(a)

rendering agricultural services in crop husbandry, pre-harvest technology, seed technology, soil testing, water testing, prescription for fertilizer, plant growth regulators, weedicides and plant protection materials, post-harvest technology, seed production technology and agricultural bio-technology;

(b)

preparing agricultural projects for private or public sector enterprises and sign or authenticate agricultural projects and issue valuation certificate required by any law to be signed or authenticated by duly qualified agricultural practitioner;

(c)

organizing and running agricultural clinics and laboratories to help farmers, in assessing soil and water qualities, quantity of organic manorial substances and fertilizers, identifying pests and diseases of crops and prescribing remedial measures, formulating and helping implementation of cropping programs suited to different soil conditions and agro-climatic factors, adopting Hi-tech farming systems in kitchen gardening, floriculture and in development of perennial plantations.

30.

Professional conduct.

(1)

The Council may, by regulation, specify the standards of professional conduct and etiquette and a code of ethics for agricultural practitioners.

(2)

Regulation made by the Council under sub-section (1) may specify which violations there of shall constitute infamous conduct in any professional respect, that is to say, professional misconduct and such provisions shall have effect notwithstanding anything contained in any other law for the time being in force.

31.

Penalty for falsely claiming to be registered.

- If any person whose name is not for the time being entered in the register falsely represents that it is so entered or uses in connection with his name or title any words or letters reasonably calculated to suggest that his name is so entered in the register, he shall be punishable on first conviction with fine, which may extend to rupees five thousand and on any subsequent conviction, with imprisonment which may extend to six months, or with fine not exceeding rupees ten thousand, or with both.

32.

Misuse of titles.

(1)

If any person,-

(a)

not being a person registered in the register, makes or uses the description as agricultural practitioner, or

(b)

not possessing an agricultural qualification, uses a degree or an abbreviation indicating or implying such qualification, he shall be punishable on first conviction with fine which may extend to rupees five thousand, and on any subsequent conviction with imprisonment, which may extend to six months, or with fine not exceeding rupees ten thousand or with both.

33.

Failure to surrender certificate of registration.

- If any person whose name has been removed from the register fails without sufficient cause to surrender his certificate of registration within the period provided in the regulation, he shall be punishable with fine which may extend to rupees five hundred and in case of continuing offence with an additional fine which may extend upto rupees one hundred per month, or part thereof, after the first day during which the offence continues.

34.

Cognizance of offence.

- No Court shall take cognizance of any offence punishable under this Act, except upon complaint made by an order of the Government or the Council.

35.

Accounts and Audit.

(1)

The accounts of the Council shall be maintained in such manner and in such form as may be provided in the regulation. The Council shall prepare an annual statement of accounts in such form as may be provided in the regulation.

(2)

The accounts of the Council shall be audited once in a year by such auditor as the Government may appoint in this behalf.

(3)

The auditor appointed under sub-section (2) shall, in connection with such audit, have such rights, privileges and authority as may be provided in the regulation and in particular, the right to demand the production of books, accounts, connected vouchers and other documents and to inspect any of the offices of the Council.

(4)

The Secretary shall cause the report of the auditor to be printed and shall bring such report before the Council for consideration at its next meeting.

(5)

The Council shall remedy forthwith, any defects or irregularities that may be pointed out by the auditor and submit a report thereon to the Government.

36.

Information to be furnished by the Council and Publication thereof.

(1)

The Council shall furnish such reports, copies of its minutes, abstract of its accounts and other information to the Government as the Government may require.

(2)

The Government may publish, in such manner as it thinks fit, any report, copy, abstract or other information furnished to it under this Section.

37.

Bar of jurisdiction.

- No order refusing to enter a name in a register or removing a name from the register shall be called in question in any court of law.

38.

Protection of action taken in good faith.

- No Suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Act, any Rule, regulation or order made thereunder.

39.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the Government may, by an order, published in the Tamil Nadu Government Gazette, make such provisions not inconsistent with the provisions of this Act as appears to them to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made after the expiry of a period of two years from the date of commencement of this Act.

40.

Power of Government to give directions.

- The Government may, from time to time, issue such directions not inconsistent with the provisions of this Act, to the Council as it may deem fit for giving effect to the provisions of this Act and the Council shall comply with such directions.

41.

Appointment of Commission.

(1)

Whenever it appears to the Government that the Council is not complying with any of the provisions of this Act, the Government may appoint a Commission consisting of three persons, two of whom shall be appointed by the Government, one being the Judge of High Court and one named by the Council and refer to the Commission, the matter on which the enquiry is to be made.

(2)

The Commission shall proceed to enquire in a summary manner and report to the Government on the matters referred to it together with such remedies, if any, as the Commission may like to recommend.

(3)

The Government may accept the report or remit the same to the Commission for modification or reconsideration. After the report is finally accepted, the Government may order the Council to adopt the remedies so recommended within such time as may be specified in the order and if the Council fails to comply within the time so specified, the Government may pass such order or take such action as may be necessary to give effect to the recommendations of the Commission.

42.

Power to make rules.

(1)

The Government may make Rules to carry out the purposes at this Act.

(2)

(a)

All Rules made under this Act shall be published in the Tamil Nadu Government Gazette and unless they are expressed to come into force on a particular day shall come into force on the day on which they are so published.

(b)

All notifications issued under this Act, shall, unless they are expressed to come into force on a particular day, come into force on the date on which they are so published.

(3)

Every Rule made or notification or order issued under this Act shall, as soon as possible after it is made or issued, be placed on the table of the Legislative Assembly and if, before the expiry of the session in which it is so placed or the next session, the Assembly makes any modification in any such Rule or notification or order, or the Assembly decides that the Rule or notification or order should not be made or issued, the Rule or notification or order shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Rule or notification or order.

43.

Power to make regulations.

(1)

The Council may, with the previous approval of the Government, make regulations, not inconsistent with the provisions of this Act and the Rules made under Section 42, to carry out the purposes of this Act.

(2)

No regulation or its cancellation or modification shall have effect until the same have been approved by the Government.

(3)

The Government may, by notification, rescind any regulation made under this Section and thereupon, the regulation shall cease to have effect.

(4)

All regulations made under this Act shall be published in the Tamil Nadu Government Gazette and unless they are expressed to come into force on a particular day, shall come into force on the day on which they are so published.

The Schedule

[See Sections 2(4) and 14(1)]

Recognized Agricultural Qualification

Sl. No.

Institution

Qualification

Abbreviation for Registration

(1)

(2)

(3)

(4)

1.

University of Chennai

Bachelor of Science (Agriculture)

B.Sc. (Agriculture)

2.

Tamil Nadu Agricultural University

Bachelor of Science (Agriculture)

B.Sc. (Agriculture)

Bachelor of Science (Forestry)

B.Sc. (Forestry)

Bachelor of Science (Horticulture)

B.Sc. (Horticulture)

Bachelor of Science (Home Science)

B.Sc. (Home Science)

Bachelor of Technology (Biotechnology)

B. Tech. (Biotechnology)

Bachelor of Technology (Agricultural Engineering)

B. Tech. (Agricultural Engineering)

Bachelor of Technology (Agricultural Information Technology)

B. Tech. (Agricultural Information Technology)

Bachelor of Technology (Bio-informatics)

B. Tech. (Bio-informatics)

Bachelor of Technology Energy and Environmental Engineering)

B. Tech. (Energy and (Environmental Engineering)

Bachelor of Technology (Food Process Engineering)

B. Tech. (Food Process Engineering)

Bachelor of Technology (Horticulture)

B. Tech. (Horticulture)

Bachelor of Science (Agribusiness Management)

B.S. (Agribusiness Management)

3.

Annamalai University

Bachelor of Science (Agriculture)

B.Sc. (Agriculture)

Bachelor of Science (Horticulture)

B.Sc. (Horticulture)

Related AI tags, queries and research notes

Translation